

25STCV02725 25STCV02725

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-06-24

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Case Number: 25STCV02725 Hearing Date: June 24, 2026 Dept: 529

SAMHO TOUR,

INC., vs A-JU TOURS, INC.

MOTION TO COMPEL MUTUAL TRANS, INC.'S

COMPLIANCE WITH DEPOSITION SUBPOENA FOR PRODUCITON OF BUSINESS RECORDS

Date of Hearing: June

24, 2026 Trial Date: November

23, 2026

Department: 529 Case No.: 25STCV02725

Moving Party: Plaintiff

Samho Tour, Inc.

Responding Party: Defendant A-Ju Tours, Inc.

Meet and Confer: Yes. Seror Decl.

BACKGROUND

On January 31, 2025, Plaintiff Samho

Tour, Inc. filed a complaint against Defendants A-Ju Tours, Inc. for unfair competition.

On April 7, 2025, A-Ju Tours, Inc.

filed a cross-complaint against Samho Tour, Inc. for unfair business practices pursuant to Business and Professions Code section 17200 and violation of California's False Advertising Law Business and Professions Code section 17500, et seq.

[Tentative] Ruling

Plaintiff's

Motion to Compel Mutual Trans, Inc.'s Compliance with Deposition Subpoena for Production of Records is GRANTED.

DISCUSSION

Plaintiff/Cross-Defendant

Samho Tour, Inc. move this court for an order compelling third-party Mutual Trans, Inc. ("Mutual Trans") to comply with Plaintiff's Deposition Subpoena for Production of Business Records and produce all responsive documents within 20 days of this court's order on this motion. Samho Tour makes the motion on the grounds that Mutual Trans was duly-served with the Subpoena requiring production of business records on April 9, 2026, yet produced no documents and served untimely objections on April 30, 2026.

“If a

subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders.” (CCP § 1987.1(a).) A party to an action may bring a motion pursuant to CCP § 1987.1(a). (CCP § 1987.1(b)(1).)

Plaintiff

argues Mutual Trans failed to properly respond to the Subpoena and instead served untimely objections after the date of production set forth in the Subpoena. Additionally, Mutual Trans produced no documents. Plaintiff contends good cause exists as Defendant's and Mutual Trans' entities are inextricably linked. Public filings with the California Secretary of State show that each entities' sole officers and/or directors share the same surname of “Bahk” and have identical addresses. (Seror Decl., ¶¶ 4-5, Exs. B-C.) Moreover, Mutual Trans' general business and financial relationship with Defendant is highly

relevant to assessing Plaintiff's unfair competition allegations and reasonably calculated to understanding the scope of Defendant's unfair business practices.

Plaintiff also notes the entered Protective Order is sufficient to address Mutual Trans' confidentiality concerns.

In

opposition, A-Ju Tours, Inc. opposes the motion on the grounds Samho has requested various documents from Mutual Trans without the requisite need nor proof of any relevant to the issues in this case. Moreover, A-Ju has provided everything that the Subpoena Deposition requests. Mutual Trans has also provided an opposition arguing Samho seeks to compel a non-party to open its books in a lawsuit that does not concern it. Mutual Trans contends it is a transportation company; it does not advertise A-Ju's tours, set A-Ju's prices, or employ A-Ju's tour guides. Accordingly, the records are not relevant. Whether a non-party transportation company pays its own drivers lawfully is not an issue in this case. Moreover, production would disclose competitively sensitive records and the parties' protective order does not protect a non-party.

The court

finds Plaintiff has set forth good cause for an order compelling Mutual Trans to provide further responses to Plaintiff's Deposition Subpoena for Production

of Business Records, Nos. 1-24. First, a

party is not required to specifically plead a legal theory before obtaining

discovery related to that theory. "Discovery necessarily serves the

function of 'testing the pleadings,' i.e., enabling a party to determine what

his opponent's contentions are and what facts he relies upon to support his

contentions." (Burke v. Superior Court of Sacramento County (1969) 71

Cal.2d 276, 281.) Plaintiff has shown the allegations are not limited to tour

guides, but workers as well and workers could include bus drivers. Moreover,

the Protective Order allows a non-party to designate information as

"confidential" or "highly confidential," and "any such designation by a

non-Party shall have the same force and effect, and create the same duties and

obligations, as if made by one of the undersigned Parties hereto." (Protective

Order, Feb. 4, 2026.) Plaintiff also asserts, under penalty of perjury, that

A-Ju has refused to produce documents in response to Plaintiff's requests

regarding Mutual Trans. (Supp. Seror Decl. ¶13.)

Based on the

foregoing, the motion to compel Mutual Trans, Inc.'s Compliance with Deposition

Subpoena for Production of Records is GRANTED.

Sanctions

Mutual Tarns

requests expenses in the amount of \$6,771.22, against Samho Tour, Inc. and its
counsel of record Matthew Seror, Esq. and his firm Buchalter LLP, jointly and
severally pursuant to Code of Civil Procedure section 1987.2.

The court

finds the motion was not made in bad faith and denies the request.